

Court No. - 39

Case :- WRIT - C No. - 27519 of 2020

Petitioner :- Vinod Kumar Saroj

Respondent :- Purvanchal Vidhyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Deepak Kumar Jaiswal, Sanjay Kumar Gupta

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Learned counsel for the respondent-Power Corporation submits that in pursuance of provisional assessment, petitioner's representation was considered and decided on 06.03.2020.

Learned counsel for the petitioner submits that he is not aware about the decision taken by respondent-Power Corporation on his representation, as such, some time may be granted to verify the same. Learned counsel for the respondent-Power Corporation has supplied to the petitioner's counsel a copy of the order dated 06.03.2020 in the Court today.

Put up this case on 28.01.2021 in the additional cause list.

Order Date :- 21.1.2021

Manish Himwan

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Hon'ble Dinesh Pathak, J.

Heard Sri Deepak Kumar Jaiswal, learned counsel for the petitioner and Sri Narendra Kumar Tiwari, learned counsel for the respondents.

Instant writ petition has been filed with the following reliefs :

"(i) issue a writ, order or direction in the nature of Certiorari to quash the recovery order dated 24.06.2019 issued by Adhishashi Abhiyanta/respondent no. 3 whereby Rs.2,14,430/- as amount of Electricity assessment of one year and Rs.12000/- as compounding fee, total Rs.2,26,430/- has been demanded.

(ii) issue a writ, order or direction in the nature of Mandamus commanding the respondent no. 3 (Executive Engineer) to decide the application dated 15.10.2020 regarding restoration of the Electricity connection in the premises of the petitioner.

(iii)"

Facts of the case are that the petitioner was having a LMV-1 electricity connection of 1 KW. On 17.06.2016 a new meter was installed at his premises. Thereafter, on 19.06.2019 the petitioner got the electricity load enhanced to 2 KW. On 10.6.2019 a team of the Electricity Department had made a surprise inspection on the petitioner's premises, and finding that the petitioner was using electricity by illegal means, a case was registered under Section 135 of the Electricity Act, 2003 and pursuant to which, provisional assessment was made on 24.6.2019, which was communicated to the petitioner. The petitioner immediately submitted an objection before the respondent no. 3 on 8.7.2019.

Submission of learned counsel for the petitioner is that the respondent no. 3, without considering the objection of the petitioner and affording opportunity of hearing to him, has recovery order dated 24.6.2019, which is absolutely illegal. He also submits that the decision taken by the respondent-Power Corporation on 6.3.2020 is with respect to some other person with which the petitioner has no concern. It is further contended that respondent authority has not proceeded in accordance with the provisions contained in Section 126 (3) of the Act, 2003 and Clause 8.1 of the Electricity Supply Code, 2005 (in short 'Code, 2005') while making final assessment, as no opportunity of hearing has been afforded to the petitioner. There is no final assessment served on the petitioner, hence, he cannot be compelled to deposit the amount of provisional assessment.

Learned counsel appearing on behalf of respondent - Power Corporation, submits that it was a case of theft of electricity and the provisional assessment was made on 24.6.2019. However, he does not dispute that the provisional assessment was treated as final assessment, without considering the objection of the petitioner.

At this stage, we deem it proper to reproduce paragraph 16 of the judgment passed in the case of **Shishir Jain vs. Paschimanchal Vidyut Vitran Nigam Ltd. and another, 2017 (3) AWC 3084** by a Division Bench of this Court. The relevant paragraph 16 of aforesaid judgment reads as under :

“16. Be that as it may, in case there is no final assessment as suggested by the learned counsel for the respondent, the petitioner cannot be compelled to deposit the amount of provisional assessment. Without making final assessment after considering the objection and giving opportunity to the petitioner, he cannot be compelled to deposit any amount. In such circumstances, the two impugned notices dated 4.3.2017 issued by respondent no.2 are not liable to be sustainable and are hereby quashed.”

In view of aforesaid, the writ petition is disposed of with the direction to the respondent no. 3 - Adhishashi Abhiyanta, Purvanchal Vidyut Vitran Nigam Limited, Khand-Pratham, District - Varanasi to consider and decide the objection of the petitioner dated 8.7.2019 in accordance with law by means of a reasoned and speaking order regarding final assessment within a period of four weeks from the date of receipt of a copy of this order, after affording opportunity of hearing to him.

For a period of six weeks or till any final decision is taken on the objection of the petitioner, whichever is earlier, no coercive action shall be taken against him pursuant to recovery order dated 24.6.2019.

Order Date :- 28.1.2021
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